

by the replication were true, no doubt there would be misconduct on the part of the defendant. It does not follow from the decision which we now pronounce, that a county court judge can so misconduct himself with impunity. If a county court judge be guilty of misconduct in the exercise of his office, the Lord Chancellor may, if he think it expedient, remove him from such office, but no action will, in my opinion, lie against him for anything done by him in his judicial capacity. For the benefit of the public and the due administration of justice, the law provides that a judge is to be so far free and unfettered in the exercise of his office as not to be liable to an action for what he does in the capacity of judge, and so placed under restraint in the discharge of his duty.

1868

SCOTT
v.
STANSFIELD.

Judgment for the defendant.

Attorney for plaintiff: *T. Thackery Calvert.*

Attorney for defendant: *H. B. Clarke.*

BIRD v. ELWES.

May 27.

*Landlord and Tenant—Agreement to Repair—Agreement to pay Charges—
Nuisances Removal Act, 1855 (18 & 19 Vict c. 121), s. 19.*

By an agreement of demise of a house and grounds, the landlord undertook to keep the premises in repair, and to pay all rates, taxes, and charges which might be payable in respect of the premises. In the grounds was a piece of ornamental water, in which during the tenancy an accumulation of mud caused at one spot a public nuisance, and at another spot a nuisance to the tenant, and elsewhere choked up the stream. The tenant, being summoned under the Nuisances Removal Act, 1855, in respect of the public nuisance, employed a contractor to clear out the whole stream to the satisfaction of the inspector of nuisances. Afterwards, at the hearing of the summons, an order was made on him to abate the public nuisance. The whole of the mud was cleared out under the contract, that part which constituted the public nuisance being removed partly before and partly after the date of the order:—

Held, first, that the landlord was not, under his agreement to repair, bound to cleanse the ornamental water.

Secondly, that no charge on the premises in respect of any part of the work done had been created by the proceedings under the Nuisances Removal Act, 1855.

SPECIAL case.

On the 3rd of March, 1862, the defendant, by an agreement in writing, let to the plaintiff a house (called Stoke College) and